

**SUBSTITUTE FOR
SENATE BILL NO. 297**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending section 20165 (MCL 333.20165), as amended by 2024 PA
250, and by adding section 17233.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 17233. (1) A registered professional nurse's refusal to**
2 **accept a hospital's request to work more than the registered**
3 **professional nurse's regularly scheduled hours according to the**
4 **registered professional nurse's predetermined work schedule is not,**
5 **by itself, grounds for administrative action under sections 16221**
6 **and 16226.**

7 **(2) As used in this section:**

8 **(a) "Hospital" means that term as defined in section 20106.**



1 **(b) "Registered professional nurse's predetermined work**
2 **schedule" means that term as defined in section 21526.**

3 Sec. 20165. (1) Except as otherwise provided in this section,
4 after notice of intent to an applicant or licensee to deny, limit,
5 suspend, or revoke the applicant's application or licensee's
6 license or certification and an opportunity for a hearing, the
7 department may deny, limit, suspend, or revoke the application,
8 license, or certification or impose an administrative fine on a
9 licensee if 1 or more of the following exist:

10 (a) Fraud or deceit in obtaining or attempting to obtain a
11 license or certification or in the operation of the licensed health
12 facility or agency.

13 (b) A violation of this article or a rule promulgated under
14 this article.

15 (c) False or misleading advertising.

16 (d) Negligence or failure to exercise due care, including
17 negligent supervision of employees and subordinates.

18 (e) Permitting a license or certificate to be used by an
19 unauthorized health facility or agency.

20 (f) Evidence of abuse regarding a patient's health, welfare,
21 or safety or the denial of a patient's rights.

22 (g) Failure to comply with section 10115.

23 (h) Failure to comply with part 222 or a term, condition, or
24 stipulation of a certificate of need issued under part 222, or
25 both.

26 (i) A violation of section 20197(1).

27 (2) The department may deny an application for a license or
28 certification based on a finding of a condition or practice that
29 would constitute a violation of this article if the applicant were



1 a licensee.

2 (3) Denial, suspension, or revocation of an individual
3 emergency medical services personnel license under part 209 is
4 governed by section 20958.

5 (4) If the department determines under subsection (1) that a
6 health facility or agency has violated section 20197(1), the
7 department shall impose an administrative fine of \$5,000,000.00 on
8 the health facility or agency.

9 (5) **Beginning June 1, 2027, subject to subsection (6), if the**
10 **department determines under subsection (1) that a hospital has**
11 **violated section 21526, the department shall impose an**
12 **administrative fine, as follows, on the hospital:**

13 (a) \$1,000.00 for a first violation.

14 (b) If a second violation occurs within 36 months after the
15 first violation, \$2,500.00 for the second violation.

16 (c) If a third violation occurs within 36 months after the
17 first violation, \$5,000.00 for the third violation.

18 (d) If a fourth or subsequent violation occurs within 36
19 months after the first violation, \$10,000.00 for the fourth or
20 subsequent violation.

21 (6) **The administrative fines imposed on a hospital as provided**
22 **under subsection (5) reset every 36 months after the hospital's**
23 **first violation.**

24 Enacting section 1. This amendatory act does not take effect
25 unless Senate Bill No. 296 of the 103rd Legislature is enacted into
26 law.

